

Crl. Misc. No. 8811-B/2013

Naeem Anwar etc.

The State etc.

3. 15.8.2013. Mr. Ijaz Ahmad Ramay, Advocate with the petitioners.
Ch. Muhammad Jahangir, Deputy Prosecutor General with Munir Ahmad, A.S.I. with record.
Mr. Muhammad Rafique Chaudhry, Advocate for the complainant and petitioner (in Crl. Misc. No.9917-BC/2013).

Single order Through this single order, I propose to dispose of Crl. Misc. No.8811-B/2013 seeking pre-arrest bail filed by Naeem Anwar and Ghulam Mustafa, petitioners and Crl. Misc. No.9917-BC/2013 seeking cancellation of bail filed by the complainant Faqeer Muhammad against Ghulam Murtaza, Rehman Gohar, Shahid Hussain and Zahid Hussain, respondents No.1 to 4 in case F.I.R. No. 71 dated 22.2.2013 registered under sections 302/324/337-A(i)/337-A(iii)/337-F(iii)/337-F(vi)/148/149/109 P.P.C. at Police Station Dijkot Alipur Chattha, District Gujranwala as both these petitions arise out of one case F.I.R.

2. As per prosecution case, the occurrence took place on 22.2.2013 at 5.30 p.m. whereas the role attributed to Naeem Anwar and Ghulam Mustafa, petitioners is that they along with their co-accused while armed with their respective weapons in prosecution of common object formed an unlawful assembly, attacked upon the

complainant party and in consequence of that, they caused death of Muhammad Bilal son of the complainant. During this occurrence, the petitioners and their co-accused also caused injuries on the person of one Habib Riaz and Abdul Rasheed PWs. The motive behind the occurrence is that one Anwar Ali Gull lodged a criminal case against Shahid Hussain and Zahid Hussain etc and the complainant pursue that case, hence this case.

3. Learned counsel for the petitioners contends that the petitioners have been involved in this case falsely with *malafide* intention and with ulterior motives; that the petitioners have been found innocent during the investigation and they were placed in column-II of the report under section 173 Cr.P.C.; that co-accused of the petitioners have been allowed bail; that the offence does not fall within prohibitory clause of Section 497 Cr.P.C.; that the investigation is complete and as such the petitioners are entitled to the concession of pre-arrest bail.

4. On the other hand, learned Law Officer assisted by the learned counsel for the complainant has vehemently opposed the bail petition by stating that the petitioners are specifically named in the F.I.R.; that both the petitioners have been assigned specific role during the occurrence which caused death of son of the complainant, namely, Muhammad Bilal; that the petitioners also caused injuries to Abdul Rasheed and Sohaib Riaz injured; that recovery of crime weapon have

yet been effected from the petitioners; that there is no *malafide* on the part of the complainant to falsely involve the petitioners in this case; that sufficient material is available against the petitioners to connect them with the commission of offence, therefore, the petitioners are not entitled to any concession of extraordinary relief of pre-arrest bail.

5. I have heard the learned counsel for the parties and have gone through the record.

6. Admittedly, Naeem Anwar and Ghulam Mustafa, petitioners are nominated in the FIR and the role of causing injuries is ascribed to them. As per F.I.R., Naeem Anwar petitioner fired at the deceased with his pistol and caused firearm injury on the left side of neck of Muhammad Bilal, deceased which is duly reflected in the postmortem report i.e. injury No.1 and his case is distinguishable from that of his co-accused Ghulam Mustafa. The ocular account is in line with the medical evidence. The prosecution has sufficient material with it to connect the petitioner with the commission of offence. The case of the petitioner No.1 falls within the prohibitory clause of Section 497 Cr.P.C. In these circumstances, pre-arrest bail petition of Naeem Anwar, petitioner No.1 is hereby dismissed.

7. So far as the case of Ghulam Mustafa, petitioner No.2 is concerned, it is contended that no overt act had been ascribed to Ghulam Mustafa, petitioner No.2. The only role attributed to him is of ineffective firing. No

injury to the deceased has been attributed to petitioner No.2. The question of vicarious liability of the petitioner No.2, namely, Ghulam Mustafa would be determined by the learned trial court at the time of recording of evidence. In this view of the matter, it is a case of further inquiry covered by Section 497 (2) of Cr.P.C. Keeping in view the facts and circumstances of the case, I accept this petition to the extent of Ghulam Mustafa, petitioner No.2 and pre-arrest bail already allowed to him vide order dated 11.7.2013 is confirmed subject to his furnishing fresh bail bonds in the sum of Rs.1,00,000/- with one surety in the like amount to the satisfaction of the learned trial court.

8. Now I would like to take up Crl. Misc. No.9917-BC/2013 filed by the complainant seeking cancellation of pre-arrest bail allowed to respondents No.1 to 4 by the learned trial court. According to the prosecution story, no specific role is ascribed against Ghulam Murtaza and Rehman Gohar, respondents No.1 and 2 and only general allegation of aerial firing is attributed to both of them whereas Shahid Hussain and Zahid Hussain, respondents No.3 and 4 are concerned, they have been attributed role of abetment and no evidence regarding abetment or conspiracy was brought on the record by the prosecution.

9. Respondents No.1 and 2 were charged for aerial firing but no alleged weapon had been recovered from them. During investigation respondents No.1 to 4 were declared innocent by the Investigating Officer. Over

and above, there is no proof that respondents No.1 to 4 after their confirmation of bail have misused the concession of bail. Learned counsel despite his best efforts could not point out any infirmity or irregularity, legal or factual, warranting interference with the impugned order dated 8.6.2013. It is well settled principle of law that considerations for the cancellation of bail are quite different from the consideration for the grant of bail. Once a bail has been granted by the court of competent jurisdiction while exercising its discretion in a judicious manner, there must be strong and exceptional reasons for its cancellation. For cancellation of bail, very strong, exceptional and cogent reasons regarding misusing, abusing, hampering with the prosecution evidence and repetition of same offence are required as held by the Hon'ble Supreme Court of Pakistan in case of Muhammad Aslam v. Dilawar and others (2009 SCMR 1202).

10. For the foregoing reasons I feel no hesitation in holding that Crl. Misc. No.9917-BC/20013 seeking cancellation of bail is devoid of force which is hereby *dismissed*.

(Aalia Neelum)
Judge

Approved for reporting.

Judge